

STATE OF NEW YORK

7713--A

2025-2026 Regular Sessions

IN SENATE

May 1, 2025

Introduced by Sens. KRUEGER, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Internet and Technology -- recommitted to the Committee on Internet and Technology in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to restricting the use of automatic license plate reader information

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 394-j to read as follows:

§ 394-j. Policy for the use of automatic license plate reader systems.
1. As used in this section, the following words and phrases shall have the following meanings:

(a) "Automatic license plate reader system" shall mean a system of one or more mobile or fixed high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data. "Automated license plate reader system" shall include but not be limited to such systems that are subject to multi-agency or vendor agreements that allow the sharing of automatic license plate reader information collected in New York.

(b) "Captured plate data" shall mean the GPS coordinates, date and time, photograph, license plate number, and any other data captured by or derived from an automatic license plate reader system.

(c) "Automatic license plate reader user" means a person or entity that owns or operates an automatic license plate reader device.

(d) "Law enforcement agency" means: (i) a law enforcement agency as defined in subdivision eight of section eighty-six of the public officers law; (ii) any private investigator, security guard, or watch, guard, or patrol agency licensed pursuant to section seventy-one of this

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11861-07-6

1 chapter; and (iii) any private entity charged with the enforcement of
2 state, county, or municipal laws or with managing custody of detained
3 persons in any state or jurisdiction.

4 2. (a) An automatic license plate reader user shall not sell, share,
5 allow access to, or transfer captured plate data to any state or local
6 jurisdiction for the purpose of investigating or enforcing a law that
7 denies or interferes with a person's right to choose or obtain reproduc-
8 tive health care services or any lawful health care services.

9 (b) Any automatic license plate reader user in this state, including
10 any law enforcement agency of this state that uses automatic license
11 plate reader systems, shall not share automatic license plate reader
12 information with an out-of-state law enforcement agency without first
13 obtaining a written declaration from the out-of-state law enforcement
14 agency that it expressly affirms that the captured plate data obtained
15 shall not be used in a manner that violates paragraph (a) of this subdi-
16 vision. If a written declaration of affirmation is not executed, the law
17 enforcement agency shall not share the captured plate data with the
18 out-of-state law enforcement agency.

19 (c) Captured plate data shall be maintained confidentially to the
20 fullest extent permitted by law.

21 3. The provisions of this section shall not apply to an electronic
22 toll collection system or associated transaction system or any component
23 thereof which is operated by a public authority for the purpose of
24 imposing and collecting tolls on a roadway within the state.

25 § 2. This act shall take effect on the thirtieth day after it shall
26 have become a law.